to the scrutiny of fundamental rights, Article 17 would have been superfluous, as all personal law in respect of untouchability would have been invalid because it violated the right to equality. This argument was also unfounded, for at least two reasons. First, Article 17 may well have been included specifically in the Constitution by way of an abundance of caution. In addition, Article 17 was wider than the right to equality, as it applied not just to state actors, but also to private citizens and the public at large. While Article 14 prohibited 'the state' from denying equality before the law, Article 17 made no analogous reference to the state or public officials.

The court's next justification invoked Article 372 of the Constitution, which permitted the President within the first three years to make adaptations or modifications to any 'law in force' – the same phrase used in Article 13 – to bring it into conformity with the Constitution. The high court observed that the Constituent Assembly cannot have intended to permit the President to unilaterally modify personal law. Therefore, the court concluded that 'law in force' did not include personal law, whether under Article 13 or Article 372. In arriving at this conclusion, the court assumed that the same words used in entirely different chapters of the Constitution should be ascribed the same meaning. Article 13 is included in the chapter on fundamental rights, while Article 372 is included in a chapter entitled 'temporary, transitional and special provisions'. Ultimately, as one prominent scholar described it, what the court was doing was to treat personal law as 'off-limits'.[8]

Once the Bombay High Court decided that the bigamy law was constitutionally valid, it turned to the punishments imposed on the defendants. In possible recognition of the draconian effect of the law, the court reduced the terms of imprisonment in almost every case. A sentence of imprisonment was replaced with a fine of Rs 100 for one defendant whose second marriage took place with the 'consent and approval' of his first wife. Sentences of imprisonment were considered harsh for three other defendants, and were reduced to fines of Rs 50 or less. For yet another defendant, the court reduced the sentence to the term of imprisonment already served by the defendant, and imposed a fine of Rs 25.